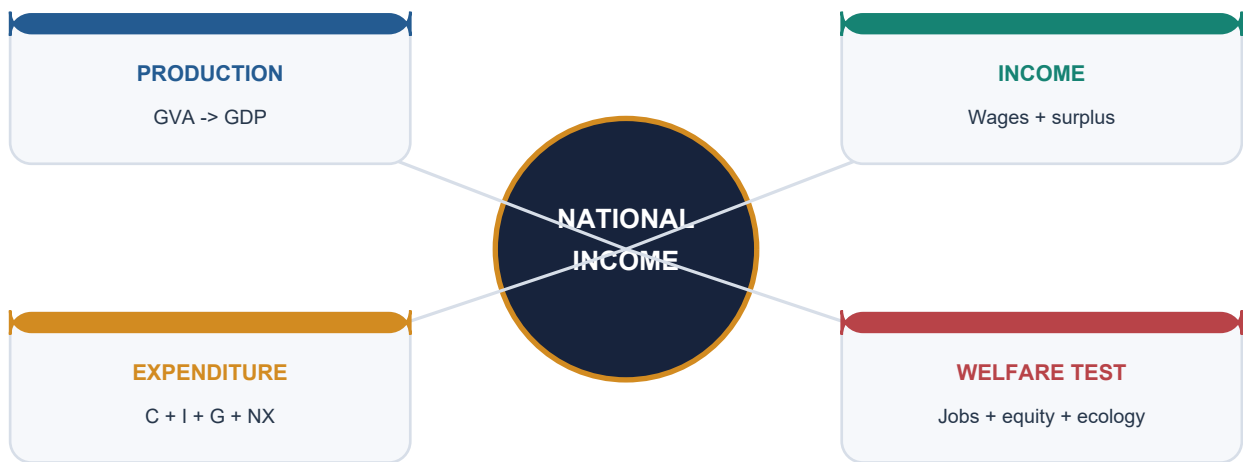


Constitutional Interpretation Doctrines - CORE / EXAM-COMPLETE

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Deterministic fallback visual: national income viewed through production, income, expenditure and welfare lenses.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Constitutional Interpretation Doctrines - CORE / EXAM-COMPLETE

Subject: Polity · **Tier:** Core · **GS Paper:** GS-II **Official clause:** "Indian Constitution-historical underpinnings, evolution, features, amendments, significant provisions and basic structure" and "Functions and responsibilities of the Union and the States ... federal structure." **Grounded in:** Constitution of India; leading Supreme Court doctrine; M. Laxmikanth, *Courseware on Indian Polity*, Eighth Edition (2026), Ch. 94. **Status legend:** FACT: constitutional/textual proposition · □□ judicial doctrine/holding · □ statute/rule · **ANALYSIS:** analytical synthesis. **Core firewall:** This is the routing map for interpretive doctrines. Fundamental-Rights.md and Centre-State-Relations.md retain detailed cases in their fields; use links rather than duplicate long case narratives. It is independently sufficient for Prelims and 10/15/20-mark Mains; no Advanced companion is required.

1. Why doctrines matter

Constitutional adjudication asks three different questions:

VALIDITY OF THE LAW severability eclipse / waiver prospective overruling	LEGISLATIVE COMPETENCE pith and substance colourable legislation territorial nexus repugnancy / incidental power	MEANING / REMEDY harmonious construction purposive interpretation precedent
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ANALYSIS: A doctrine is a structured judicial test, not a free-standing constitutional Article. Start an answer with the relevant text (for example Arts 13, 245-246, 254, 141), then use the doctrine.

Interpretive methods before applying doctrine

Method	Central question	Legitimate use	Limit
Textual	What do the enacted words, definitions and grammar permit?	Starting point for every issue	A word cannot be isolated from its Part, proviso or structure
Structural	What arrangement follows from institutions, fields, rights and checks?	Resolves relationships and constitutional silence	Structure cannot contradict express text
Historical	What problem, drafting history or constitutional background explains the clause?	Clarifies context and rejected alternatives	History informs; it does not freeze future application
Purposive	What constitutional object makes the guarantee or power effective?	Rights, remedies and institutional design	Purpose remains anchored in text and competence
Precedent-based	What binding ratio and bench-strength rule controls?	Equality, certainty and disciplined development	Obiter and smaller benches do not overrule

Examiner opening: Constitutional interpretation moves from text to structure, purpose, history and binding precedent; it is not a choice between literalism and judicial preference.

2. Fundamental-rights validity doctrines

2.1 Severability

□□ **Rule:** If the unconstitutional portion of a law can be separated from the valid portion and the legislature would have enacted the valid remainder independently, the court invalidates only the offending part.

Test	Question
Textual separation	Can valid and invalid parts be separated?
Legislative intent	Would the valid part have been enacted alone?
Functional completeness	Can the remainder operate coherently?
Scheme unity	Are the parts so mixed that the whole must fail?

□□ Standard anchor: *R.M.D. Chamarbaugwala v. Union of India* (1957).

Trap: Severability preserves a workable valid remainder; courts do not rewrite the legislative scheme.

2.2 Eclipse

□□ **Rule:** A pre-Constitution law inconsistent with Fundamental Rights is generally not erased from the statute book; it becomes unenforceable to the extent of inconsistency and may revive if the constitutional impediment is removed.

- classical field: pre-Constitution laws under Art 13(1);
- standard anchor: *Bhikaji Narain Dhakras v. State of Madhya Pradesh* (1955);
- the law may remain relevant to past transactions/non-protected persons.

Trap: Eclipse is not the same as repeal, and its classical operation should not be casually extended to every post-Constitution invalid law.

2.3 Waiver of Fundamental Rights

□□ **Rule:** An individual cannot generally waive a Fundamental Right in a manner that validates State action contrary to the Constitution. Fundamental Rights express public constitutional policy, not merely private benefits.

□□ Standard anchor: *Basheshar Nath v. CIT* (1958).

Trap: This is not a rule that every private legal right or procedural protection is non-waivable.

3. Legislative-competence doctrines

3.1 Pith and substance

□□ **Rule:** To identify the legislative field, examine the law's true nature and character-its purpose, scope and effects. Incidental encroachment on another list does not invalidate a law whose dominant subject falls within the enacting legislature's competence.

□□ Anchors: *Prafulla Kumar Mukherjee v. Bank of Commerce* (1947); *State of Bombay v. F.N. Balsara* (1951).

3.2 Incidental and ancillary powers

□□ **Rule:** A legislative entry includes powers reasonably necessary to make the granted subject effective. The doctrine supports incidental provisions but cannot create competence over an independent, forbidden field.

ANALYSIS: It often works with pith and substance: first locate the dominant field, then assess whether the additional measure is genuinely ancillary.

3.3 Colourable legislation

□□ **Rule:** What cannot be done directly cannot be done indirectly. The court examines legislative **competence**, not the legislature's political motive: form cannot disguise a law whose substance lies outside power.

□□ Anchor: *K.C. Gajapati Narayan Deo v. State of Orissa* (1953).

Trap: A bad motive does not by itself make a competent law colourable.

3.4 Territorial nexus

FACT: Arts 245-246 structure territorial and subject-matter competence. □□ A State law affecting matters beyond its territory can survive where the connection between the State and the subject is real and sufficient and the liability/operation is relevant to that connection.

□□ Anchor: *State of Bombay v. R.M.D. Chamarbaugwala* (1957).

3.5 Repugnancy

FACT: Article 254 addresses inconsistency between Parliamentary and State laws on a **Concurrent List** matter.

Same Concurrent field?

↓ yes

Is simultaneous obedience possible / does Parliament occupy the field?

↓ conflict

Union law prevails; State law void to extent of repugnancy

↓ exception

State law reserved for and assented to by President prevails in that State, but Parliament may later override it

□□ Anchors include *Deep Chand v. State of Uttar Pradesh* (1959) and *M. Karunanidhi v. Union of India* (1979).

Traps: Art 254 is not the default answer for Union-List versus State-List overlap; use pith-and-substance/harmonious construction first. Presidential assent is neither permanent immunity nor a cure for lack of State legislative competence.

Occupied field is an inference that Parliament intended its law to cover the relevant Concurrent field so completely that inconsistent State supplementation cannot co-exist. Mere existence of a Union law is insufficient: identify the same field, statutory scheme and actual conflict.

4. Meaning and reconciliation doctrines

4.1 Harmonious construction

□□ **Rule:** Read apparently conflicting provisions so each has meaningful operation and neither is rendered redundant where a reasonable reconciliation is possible.

Uses:

- reconciling Fundamental Rights and Directive Principles;
- interpreting entries in the Seventh Schedule;
- reading powers, limitations and institutional provisions together.

□□ Anchor: *In re Kerala Education Bill* (1958); the broader Part III-Part IV balance is developed through later constitutional cases.

4.2 Federal supremacy

FACT: Where a genuine and irreconcilable conflict remains after harmonious construction, the Constitution's supremacy clauses operate-especially Union priority in Art 246 and repugnancy under Art 254 in its proper field.

Sequence trap: Federal supremacy is a last-stage constitutional resolution, not a reason to skip the attempt to assign each entry a meaningful field.

4.3 Purposive and liberal interpretation

□□ **Rule:** Constitutional language is read in light of its object, structure, history and transformative purpose rather than as an isolated literal code. Rights provisions commonly receive a generous interpretation that makes the guarantee effective.

ANALYSIS: Purpose constrains interpretation; it does not authorise a judge to replace clear text or create an unlimited power. Text, structure, precedent and institutional competence remain controls.

4.4 Implied powers

□□ **Rule:** A constitutionally conferred power may carry powers necessarily implied for its effective exercise. "Implied" cannot contradict an express prohibition or alter the constitutional allocation.

Distinction: Incidental/ancillary powers are commonly used in legislative-entry analysis; implied powers is the broader institutional proposition.

5. Time and authority doctrines

5.1 Prospective overruling

□□ **Rule:** The court may declare a new rule for the future while preserving specified past transactions or existing effects to avoid disruptive injustice.

□□ Introduced into Indian constitutional adjudication in *I.C. Golaknath v. State of Punjab* (1967), with later use tailored to the case.

Trap: It is not automatic whenever precedent changes; the court must deliberately shape the temporal effect.

5.2 Precedent and Article 141

FACT: The law declared by the Supreme Court is binding on all courts within India under Art 141.

Concept	Meaning
Ratio decidendi	Legal principle necessary to decide the case; binding component
Obiter dicta	Persuasive observation not necessary to the result
Distinguishing	Earlier ratio does not control because materially relevant facts/legal context differ
Per incuriam	Decision rendered in ignorance of binding law; narrowly used
Bench strength	Smaller bench cannot overrule a larger-bench ruling; coordinate conflict routes to larger bench
Art 142	Power to do complete justice in a cause; not a replacement for Art 141 doctrine

□□ Constitutional courts may reconsider their own precedents through proper bench procedure. Precedent promotes equality, certainty and institutional legitimacy while allowing reasoned change.

Reading down, reading into and judicial-legislation limits

- **Reading down** chooses a constitutionally valid meaning that the statutory text can reasonably bear. *Kedar Nath Singh v. State of Bihar* (1962) is a standard narrowing example.
- **Reading into** supplies an implication necessary to protect a constitutional guarantee in a defined setting. It is more interventionist and requires a strong textual or structural basis.
- *Shreya Singhal v. Union of India* (2015) refused to save an incurably vague provision through judicial rewriting. A court may interpret but cannot enact a new legislative scheme.

Tool	Legal effect	Limit
Reading down	Preserves a provision through a narrower valid construction	Text must reasonably support it
Reading into	Recognises a necessary implication or safeguard	Cannot contradict express exclusion or create a complete code
Severability	Removes separable invalid matter	Remainder must be workable and intended
Striking down	Invalidates the unconstitutional provision/law	Used when no valid saving construction exists

Basic structure as an interpretive limit on amendment

- *Kesavananda Bharati v. State of Kerala* (1973) holds that Parliament's Art 368 power is wide but cannot damage the Constitution's basic structure. *Minerva Mills v. Union of India* (1980) confirms limited amending power and harmony between Fundamental Rights and DPSPs.

Trigger	Provision	Effect	Limit/trap
Constitutional amendment challenged	Art 368 read with constitutional structure	Amendment may be invalidated for damaging a basic feature	Doctrine reviews amendments, not every policy disagreement

The doctrine is interpretive because the Constitution does not enumerate a closed list. It is not an independent judicial amendment power.

Presumption, arbitrariness and proportionality

Presumption of constitutionality

Courts ordinarily presume legislation valid and place an initial burden on the challenger, while the intensity of justification varies with the right, classification and available evidence. *Ram Krishna Dalmia v. Justice S.R. Tendolkar* (1958) is a standard classification anchor.

Trap: The presumption is rebuttable and cannot cure lack of competence, explicit discrimination or a disproportionate rights restriction.

Arbitrariness and manifest arbitrariness

- *E.P. Royappa v. State of Tamil Nadu* (1973) linked arbitrariness and equality. **Manifest arbitrariness** is a demanding invalidity standard for legislation that is capricious, irrational or without an adequate determining principle; *Shayara Bano v. Union of India* (2017) is a leading anchor.

Distinction: Administrative arbitrariness, unreasonable classification and manifest arbitrariness of legislation overlap under Art 14 but are not interchangeable labels.

Proportionality

□□ Proportionality tests lawful authority, legitimate aim, rational connection, necessity or a less restrictive alternative, and balance between rights harm and public benefit.

Modern Dental College v. State of Madhya Pradesh (2016), *K.S. Puttaswamy v. Union of India* (2017) and *Anuradha Bhasin v. Union of India* (2020) are major anchors.

Trap: Proportionality is structured review, not judicial substitution of a preferred policy.

Constitutional morality and transformative constitutionalism

Constitutional morality requires fidelity to the Constitution's text, procedures, equal citizenship and institutional role morality rather than social or personal morality.

Transformative constitutionalism treats the Constitution as a lawful project for dismantling status hierarchy and realising liberty, equality, dignity and fraternity.

□□ *Navtej Singh Johar v. Union of India* (2018) is a leading rights application. Each use must be connected to an identifiable provision, structure and remedy.

Trap: Neither doctrine authorises free-standing moral review or permits a court to ignore democratic competence and precedent.

Essential religious practices and current doctrinal caution

□□ *Commissioner, Hindu Religious Endowments v. Sri Lakshmindra Thirtha Swamiar of Shirur Mutt* (1954) is the classic source of the essential-religious-practices inquiry. The court distinguishes protected matters of religion from secular activities associated with religion, while applying public-order, morality, health and other Fundamental Rights limits.

The doctrine may draw courts into theology, freeze internal diversity and obscure a direct rights-conflict analysis. *Indian Young Lawyers Association v. State of Kerala* (2018) illustrates the interaction among religious freedom, equality, dignity and constitutional morality. Any pending larger-bench or review question must be labelled pending, not a fresh final holding.

Constitutionally relevant neighbouring doctrines

Doctrine	Constitutional relevance	Leading anchor	Distinction/limit
Pleasure	Arts 310-311 and responsible government	<i>Shamsher Singh v. State of Punjab</i> (1974)	Controlled by express safeguards and constitutional-head conventions
Legitimate expectation	Fair, non-arbitrary administration under Art 14	<i>Navjyoti Cooperative Group Housing Society v. Union of India</i> (1992)	Usually protects fair consideration/procedure, not automatic entitlement
Promissory estoppel	Rule-of-law control of governmental representation	<i>Motilal Padampat Sugar Mills v. State of Uttar Pradesh</i> (1978)	Cannot compel violation of statute, duty or overriding public interest
Casus omissus	Judicial restraint where text has a gap	<i>Padma Sundara Rao v. State of Tamil Nadu</i> (2002)	Court ordinarily cannot supply an omission because the result is inconvenient
Constitutional silence	Text leaves an institutional matter unstated	Structure, convention and precedent	Silence is not unlimited power

Firewall: Pleasure concerns tenure; legitimate expectation concerns fair administrative treatment; promissory estoppel concerns reliance; casus omissus concerns an omitted textual case.

Constitutional silence, conventions and restraint

express text and prohibitions
↓
constitutional structure and responsible-government logic
↓
binding precedent and established legal practice
↓
political convention, comparative aid and history
↓
minimum rule necessary to preserve accountability

A convention may guide political conduct without becoming judicially enforceable law. Courts may protect the legal structure within which conventions operate, but should not constitutionalise every political expectation.

Article 142 permits complete justice in the cause before the Supreme Court but does not authorise disregard of substantive law. *Supreme Court Bar Association v. Union of India* (1998) is the standard limitation anchor. A coordinate or smaller bench that doubts controlling law should seek a proper reference rather than silently disregard the larger bench.

Decision trees for competence, rights and remedies

Legislative competence

enacting legislature + entry
↓
pith and substance
↓
incidental overlap? -> ancillary power
↓
disguised lack of power? -> colourable legislation
↓
State extra-territorial reach? -> territorial nexus
↓
same Concurrent field + actual conflict? -> Art 254 repugnancy/assent

Rights review

State action + affected right
↓
authority of law + legitimate aim
↓
classification/arbitrariness
↓
proportionality: connection -> necessity -> balance
↓
valid saving meaning? -> read down
↓ no
sever / strike; shape time only through reasoned prospective overruling

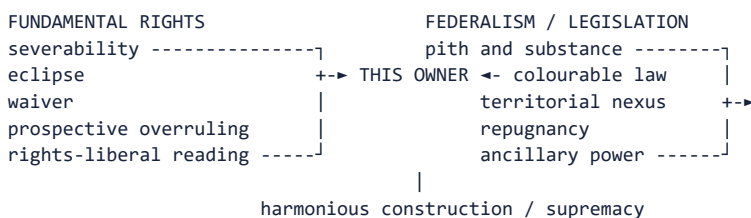
Remedy and precedent

controlling Article + larger-bench ratio
↓
apply or distinguish
↓
doubt remains? -> proper reference, not silent overruling
↓
declaration / severability / reading down / injunction / compensation
↓
Art 142 remains case-bound and substantively limited

6. Doctrine-selection matrix

Problem in question	Start with	Then test
One provision of a law violates a right	Art 13	Severability
Old law conflicts with a Fundamental Right	Art 13(1)	Eclipse
Person consented to rights-infringing State action	Relevant FR	Non-waiver
Union/State field overlap	Arts 245-246, Seventh Schedule	Pith and substance -> ancillary power -> harmonious construction
Legislature disguises lack of competence	Competence provision	Colourable legislation
State law has extra-territorial effect	Art 245	Territorial nexus
Union and State laws clash in Concurrent field	Art 254	Repugnancy and assent
Two constitutional provisions appear inconsistent	Text/structure	Harmonious construction; supremacy only if irreconcilable
New constitutional interpretation threatens settled transactions	Relevant judgment	Prospective overruling
Lower court faces Supreme Court statement	Art 141	Ratio, bench strength, distinguishing
Text is broad/open-ended	Text + constitutional purpose	Purposive/liberal interpretation within structural limits
Law restricts a right for a public objective	Rights text + authority	Proportionality
Legislation is attacked as capricious	Art 14	Manifest arbitrariness, with a demanding threshold
Statute has two plausible meanings	Governing text/right	Reading down if the valid meaning is textually available
Amendment damages constitutional identity	Art 368	Basic structure
Religious-practice claim conflicts with equality/dignity	Arts 25-26 plus other rights	ERP inquiry with current doctrinal caution
Constitutional text is silent	Text + structure + precedent	Convention only as a bounded aid

7. Cross-topic routing map



- Rights case detail and Article 13: Fundamental-Rights.md
- Legislative relations and federal cases: Centre-State-Relations.md
- Basic structure/amending power: Amendment-and-Basic-Structure.md
- Judicial review/precedent institutions: Supreme-Court.md, High-Court.md

8. Answer architecture (10/15/20-mark support)

8.1 Demand map

Demand	Answer spine
Explain one doctrine	Textual anchor -> rule/test -> case -> application -> limit
Compare doctrines	Trigger -> legal effect -> scope -> case -> trap
Doctrines and federalism	competence map -> pith/substance -> reconciliation -> repugnancy/supremacy
Judicial creativity	purposive reading + implied powers -> precedent/limits -> legitimacy verdict
Invalidity and remedies	severability/eclipse -> temporal effect/prospective overruling -> rule-of-law balance

8.2 Thesis options

- *Interpretive doctrines translate a terse constitutional text into predictable tests, but their legitimacy depends on anchoring each test in text, structure and precedent.*
- *Federal doctrines first seek to preserve both legislative fields; Union supremacy resolves only the irreducible conflict authorised by the Constitution.*
- *Severability, eclipse and prospective overruling all moderate invalidity, but operate on different objects-the law's parts, its enforceability and the judgment's temporal effect.*

8.3 Mark-scaled structures

Marks	Structure	Evidence
10	Define -> textual anchor -> test -> one case -> limit	2-3 authorities
15	Doctrine cluster -> compare operation/effect -> cases -> constitutional rationale	4-5 authorities
20	Textual framework -> multiple doctrine sequence -> institutional/equality rationale -> critiques -> balanced conclusion	6-8 authorities

8.4 Evidence units

- **Claim:** pith and substance protects workable federalism. **Evidence:** □□ dominant-character test. **Analysis:** allows incidental overlap in a detailed regulatory state. **Qualification:** cannot rescue a disguised law whose true subject is outside competence.
- **Claim:** severability favours constitutional restraint. **Evidence:** □□ invalid part alone may fall. **Analysis:** respects the valid legislative choice. **Qualification:** remainder must be independent and workable.
- **Claim:** precedent is structured, not mechanical. **Evidence:** FACT: Art 141 and bench hierarchy. **Analysis:** creates certainty/equality. **Qualification:** distinguishing and larger-bench reconsideration permit principled development.

Comprehensive doctrine atlas

Doctrine	Definition and trigger	Provision/field	Leading case (decision year)	Legal effect	Limitation and UPSC trap
Textual interpretation	Reads enacted words in context when meaning is disputed	Entire Constitution	<i>Kesavananda Bharati</i> (1973) used text with structure	Fixes the permissible semantic starting range	Text is the start, not an isolated dictionary exercise
Structural interpretation	Infers meaning from institutional and federal architecture	Parts, Schedules and relationships	<i>S.R. Bommai</i> (1994)	Preserves constitutional relationships/features	Structure cannot override express text
Historical interpretation	Uses framing history/background to clarify ambiguity	Relevant provision	<i>In re Berubari Union</i> (1960)	Supplies context	History informs, not freezes
Purposive interpretation	Reads language to make constitutional object effective	Rights/powers	<i>Maneka Gandhi</i> (1978)	Gives effective, coherent protection	Purpose cannot create unlimited power
Harmonious construction	Reconciles apparently conflicting provisions	Whole Constitution	<i>Kerala Education Bill</i> (1958)	Allows both provisions meaningful operation	Cannot erase an express priority
Pith and substance	Finds a law's true nature where fields overlap	Arts 245-246, Seventh Schedule	<i>Prafulla Kumar Mukherjee</i> (1947)	Dominant field controls; incidental overlap tolerated	Does not save disguised incompetence
Colourable legislation	Tests whether form disguises lack of competence	Arts 245-246	<i>K.C. Gajapati Narayan Deo</i> (1953)	Invalidates law outside true competence	Bad motive alone is insufficient
Incidental/ancillary power	Includes measures necessary to make an entry effective	Legislative entry	<i>State of Bombay v. F.N. Balsara</i> (1951)	Supports genuine auxiliary provisions	Cannot create an independent forbidden field
Occupied field/repugnancy	Tests conflicting Union/State laws in same Concurrent field	Art 254	<i>M. Karunanidhi</i> (1979)	Union prevails to conflict, subject to assent route	Not the default for List I/List II overlap
Territorial nexus	Requires real connection for extra-territorial State effect	Art 245	<i>State of Bombay v. R.M.D. Chamarbaugwala</i> (1957)	Sustains law where nexus is sufficient	Remote or illusory nexus fails
Severability	Removes a separable unconstitutional part	Art 13	<i>R.M.D. Chamarbaugwala v. Union of India</i> (1957)	Preserves workable valid remainder	Court cannot rewrite scheme
Eclipse	Makes inconsistent pre-Constitution law dormant to that extent	Art 13(1)	<i>Bhikaji Narain Dhakras</i> (1955)	Law may revive if impediment removed	Not repeal; classical scope is pre-Constitution law
Waiver of Fundamental Rights	Rejects consent as validation of unconstitutional State action	Part III	<i>Basheswar Nath</i> (1958)	Preserves public constitutional policy	Not every private/procedural right is non-waivable
Prospective overruling	Controls future effect of a newly declared rule	Judicial remedy	<i>I.C. Golaknath</i> (1967)	Protects specified settled effects	Must be expressly and reasonably invoked
Basic structure	Limits damage to constitutional identity by amendment	Art 368	<i>Kesavananda Bharati</i> (1973)	Invalidates a damaging amendment	Not an ordinary policy veto

Doctrine	Definition and trigger	Provision/field	Leading case (decision year)	Legal effect	Limitation and UPSC trap
Reading down	Chooses a narrower constitutionally valid meaning	Rights + statute	<i>Kedar Nath Singh</i> (1962)	Preserves valid scope	Text must reasonably bear the meaning
Reading into	Recognises a necessary implication/safeguard	Rights + structure	<i>Vishaka v. State of Rajasthan</i> (1997)	Temporarily protects a constitutional guarantee	Cannot contradict statute or permanently legislate
Presumption of constitutionality	Starts ordinary legislation as valid	Judicial review	<i>Ram Krishna Dalmia</i> (1958)	Initial burden rests on challenger	Rebuttable; cannot cure incompetence
Arbitrariness/equality	Treats arbitrary State action as unequal	Art 14	<i>E.P. Royappa</i> (1973)	Invalidates arbitrary action	Identify administrative/classification context
Manifest arbitrariness	Reviews legislation for caprice/irrationality/no determining principle	Art 14	<i>Shayara Bano</i> (2017)	May invalidate legislation	Demanding standard, not mere disagreement
Constitutional morality	Gives priority to constitutional values/forms over social morality	Preamble, Part III, structure	<i>Navtej Singh Johar</i> (2018)	Guides rights and institutional reasoning	Must have textual/structural anchor
Transformative constitutionalism	Applies rights to dismantle status hierarchy	Preamble and Part III	<i>Navtej Singh Johar</i> (2018)	Advances liberty, equality, dignity and fraternity	Not free-standing judicial policy
Proportionality	Tests legality, aim, connection, necessity and balance	Part III	<i>Modern Dental College</i> (2016)	Invalidates excessive rights restriction	Court reviews justification, not policy preference
Essential religious practices	Distinguishes protected religious matters from regulable secular activity	Arts 25-26	<i>Shirur Mutt</i> (1954)	Defines protected scope subject to limitations	Apply current caution; do not treat pending reconsideration as settled change
Pleasure	Constitutional tenure power subject to safeguards	Arts 310-311	<i>Shamsher Singh</i> (1974)	Explains formal and responsible authority	Not arbitrary dismissal power
Legitimate expectation	Protects fair consideration based on representation/practice	Art 14 administration	<i>Navjyoti Cooperative Group Housing</i> (1992)	Usually procedural fairness	Not automatic substantive entitlement
Promissory estoppel	Controls governmental departure from relied-on representation	Rule of law/Art 14	<i>Motilal Padampat Sugar Mills</i> (1978)	May hold government to promise	Cannot compel illegality or defeat overriding public interest
Casus omissus	Restraint against supplying an omitted case	Interpretation	<i>Padma Sundara Rao</i> (2002)	Leaves genuine omission to legislature	Inconvenience is not authority to legislate
Precedent/bench strength	Applies binding ratio through judicial hierarchy	Arts 141-142	<i>Supreme Court Bar Association</i> (1998)	Ensures certainty and proper reference	Art 142 is not a source to disregard substantive law

Interpretation-amendment firewall: Interpretation resolves meaning and remedy within the enacted Constitution. Amendment changes constitutional text through Art 368. Judicial legislation begins where a court abandons available text/structure and creates a policy code.

9. Must-Know Facts

- FACT: Art 13 anchors invalid-law doctrine; Arts 245-246 and 254 anchor federal competence/conflict; Art 141 anchors binding Supreme Court law.

- ☐☐ Severability removes the separable invalid portion.
 - ☐☐ Eclipse classically makes an inconsistent pre-Constitution law dormant to that extent.
 - ☐☐ Fundamental Rights generally cannot be waived to validate unconstitutional State action.
 - ☐☐ Pith and substance tolerates genuine incidental encroachment.
 - ☐☐ Colourability concerns competence, not motive.
 - ☐☐ Repugnancy is centred on the Concurrent field and is only to the extent of conflict.
 - ☐☐ Prospective overruling controls temporal effect; precedent controls authoritative effect.
 - ☐☐ Reading down preserves only a meaning the text can reasonably bear.
 - ☐☐ Proportionality tests authority, aim, rational connection, necessity and balance.
 - ☐☐ Basic structure limits amendment, while rights doctrines review ordinary State action through their own provisions and standards.
-

10. UPSC traps and source discipline

- Do not cite a doctrine without the governing Article/constitutional allocation.
- Do not treat every overlap as repugnancy.
- Do not equate colourable legislation with political bad faith.
- Do not say eclipse repeals the law.
- Do not say purposive interpretation permits ignoring text.
- Do not equate every Supreme Court sentence with binding ratio.
- Do not use harmonious construction to erase an express priority clause.
- Do not collapse reading down into judicial legislation.
- Do not use constitutional morality without a textual or structural anchor.
- Do not present a pending review/reference as a decided doctrinal change.
- Separate FACT: text, ☐☐ doctrine/holding, ☐ statutory modification and ANALYSIS: evaluation.